

Court No. - 29

Case :- WRIT - C No. - 41658 of 2016

Petitioner :- Mahendra Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pratap Shanker Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

Heard the learned counsel for the parties.

The contention of the petitioner is that excess amount is being recovered.

We are of the opinion that if the bill is incorrect, the remedy available to the petitioner is to file an appropriate application before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005.

In view of the aforesaid, we dispose of the matter directing the petitioner to move an appropriate application before the Executive Engineer for correction of the bill. If such an application is filed, an appropriate order shall be passed by the Executive Engineer within four weeks.

Order Date :- 5.9.2016

YK

(Vipin Sinha, J.) (Tarun Agarwala, J.)